

24NNCV04994 24NNCV04994

County: los-angeles

Division: Civil Law and Motion

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Motion: DEFENDANTS' MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

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Case Number: 24NNCV04994 Hearing Date: August 11, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

SERENA CHUA, et al.,

Plaintiff(s),

vs.

CONTINENTAL
TOWNHOMES AT MONTEREY PARK OWNERS ASSOCIATION, INC., et al.,

Defendant(s).

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CASE NO.: 24NNCV04994

[TENTATIVE]

ORDER RE: DEFENDANTS' MOTION FOR SUMMARY JUDGMENT OR, IN THE
ALTERNATIVE, SUMMARY ADJUDICATION

Dept.

3

8:30

a.m.

August

11, 2026

I.

INTRODUCTION

This action

was filed on September 13, 2024 by plaintiffs Serena Chua ("Chua"), Irene Matsubara ("Matsubara"), and Hoi King Tsui ("Tsui") (collectively, "Plaintiffs") against defendants Continental Townhomes at Monterey Park Owners Association, Inc. ("HOA") and Partners Community Management, Inc. ("Management") (collectively, "Defendants"). Plaintiffs assert causes of action

for negligence, trespass, nuisance, and violation of Health and Safety Code § 13007. The action arises from a fire that took place on November 29, 2023, at a condominium building located at 178 Casuda Canyon Drive, Monterey Park, California 91754 ("Property"). Chua owned and occupied Unit E, Matsubara owned and occupied Unit F, and Tsui owned and occupied Unit D. (Compl., ¶ 1.) Plaintiffs allege that the common areas were negligently inspected, maintained, repaired, and managed by Defendants. Plaintiffs additionally allege that Defendants committed a trespass, created a nuisance, and violated Health and Safety Code § 13007 when they allowed the spread of a negligently-caused fire.

On May 18, 2026, Defendants filed this motion for summary judgment or, in the alternative, summary adjudication on each cause of action.

Plaintiffs
filed an opposition brief on July 22, 2026.

Defendants
filed a reply brief on July 31, 2026.

II. LEGAL STANDARD

In reviewing a motion for summary judgment, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).) To meet this burden of showing a cause of action cannot be established, a defendant must show not only "that the plaintiff does not possess needed evidence" but also that "the plaintiff cannot reasonably obtain needed evidence." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.) A moving defendant need not conclusively negate an element of plaintiff's cause of action, but it is insufficient for the defendant to merely point out the absence of evidence. (*Id.* at p. 854; *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.) The supporting evidence can be in the form of

affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (Aguilar, supra, 25 Cal.4th at p. 855.) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . .

to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).)

The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (Ibid.)

“If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

III.

EVIDENTIARY OBJECTIONS AND REQUESTS FOR JUDICIAL NOTICE

A.

Request for Judicial Notice

Defendants’

request for judicial notice of the complaint in this action is GRANTED. (Evid Code, § 452(d).)

B.

Plaintiffs’ Evidentiary Objections

Plaintiffs

object to three paragraphs of the Declaration of William Kang on the grounds that he lacks personal knowledge to attest to the ownership of Unit C, any notices or complaints received by the HOA about electrical wires, and whether there had been other fires on the Property. The objections are SUSTAINED. While Mr. Kang declares that he is the president of the HOA, there are no facts specifying the duration of his tenure and how he knows about the ownership of Unit 3 or whether the HOA received any notice, complaints, or comments about the electrical wires.

C.

Defendants’ Evidentiary Objections

Since the

Court concludes that Defendants failed to meet their moving burden to show an absence of a triable issue of fact, the Court need not consider Plaintiffs' evidence and Defendants' objections thereto.

IV.

DISCUSSION

Defendants argue that summary judgment is appropriate because the primary issue depends on the interpretation of the Declaration of Covenants, Conditions, and Restrictions for Continental Townhomes at Monterey Park, recorded November 20, 1973 ("CC&Rs"). Plaintiffs each admit that they are members of the HOA and bound by the CC&Rs and there is no dispute that the CC&Rs require the HOA to maintain the "Common Area", which is defined as "[t]he entire project excepting all units therein granted or reserved." (Defendants' Undisputed Material Fact ("UMF") Nos. 2-3, 6-10, 19.) The term "Unit" is defined as "the elements of a condominium which are not owned in common with the other owners of the condominiums in the project" and "Condominium" is defined as "[a] fee simple estate in real property consisting of an undivided fractional interest in the common area, together with an interest in a unit as hereinabove defined." (UMF Nos. 20-21.) The CC&Rs require the HOA to maintain the common areas in a first class condition and in a good state of repair, while "[e]ach owner should provide insurance on his personal property, and any necessary repairs or maintenance to such unit shall be the responsibility of the unit thereof." (UMF Nos. 24, 26.)

Defendants argue that Plaintiffs' causes of action for negligence, trespass, nuisance, and violation of Health and Safety Code § 13007 fail because Plaintiffs cannot prove that the electrical wires that caused the fire were owned or the responsibility of Defendants since the wiring was not owned in common and not a "Common Area" for which the HOA was responsible. Alternatively, Defendants argue that even if the electrical wiring was a common area, the fire was unforeseeable and the HOA had no affirmative duty to open interior walls to inspect the wires where there was no indication that there were any hazards.

A.

Whether the Electrical Wiring is Owned In Common

First, Defendants contend that

the wiring that caused the fire was an element of Unit C, and not a Common Area. (Motion, pp. 9-10.) Each individual Unit contains electrical wiring, an electric panel, and an electric meter; these elements are not connected to any other Unit at the Property. (UMF Nos. 22-23.) Defendants claim it is undisputed that the fire originated in the void space between walls above Unit C's entryway door and was caused by an "adverse electrical event associated with the copper-clad wiring having been compressed in between the structural members and 2x4 backing." (UMF Nos. 15-17.) Defendants argue these wires connect to and service only Unit C and are not owned in common with any other Unit owner.

Defendants argue that no duty was owed because the electrical wiring that caused the fire was an element of Unit C, and not a Common Area. Defendants rely on their "cause and origin investigator", Michale Koster of Reliant Investigations, Inc., who conducted an investigation on December 13, 2023 and concluded that the fire originated "within the void space directly above the front entryway man [sic] door to unit C at the Property." (UMF No. 33; Ex. H, ¶ 3.) Defendants argue that the HOA did not owe a duty to maintain or repair the wiring connecting to and servicing Unit C because a unit's electrical wiring is not owned in common with the other owners because it is not shared, controlled, used by, and/or paid for by more than one owner. (Motion, pp. 9-10.)

In opposition, Plaintiffs argue that Defendants fail to show that no triable issues exist with regard to whether the electrical wiring in the "void space" above Unit C is a common area. Civil Code section 4145(b) states that unless the governing documents provide otherwise, the interior surfaces of perimeter walls, floors, ceilings, windows, doors, and outlets are part of the separate interest if they are designated as the interest's boundaries; any other portions of the walls, floors or ceiling are part of the common area. Defendants do not introduce any evidence about Unit C's recorded boundaries and, given the statutory default limiting a separate interest to the interior space of a unit, a triable issue of material fact exists as to whether the electrical wiring "compressed in between the structural members and 2x4 backing" is a common area.

Since Defendants fail to meet their moving burden to show no triable issues of material fact exist with respect to the characterization of the electrical wiring as a common area, the motion for summary judgment/adjudication on this basis is DENIED.

Defendants argue that in the alternative, even if the electrical wiring were considered a Common Area, there is no duty to open the walls of every Unit when there are no known or foreseeable dangerous conditions. Defendants list the factors identified in *Rowland v. Christian* (1968) 69 Cal.2d 108, 112, which weigh against the imposition of an affirmative duty to protect and state that the HOA received no notice, complaints, or comments prior to the fire about the electrical wires and that there had never been a fire at this Property. Defendants' sole evidence regarding any lack of prior notice is the declaration of William Kang, its president. As stated above, the objections to Kang's statements that the HOA received no notice, complaints or comments before the fire about the electrical wires or that no other fire had ever occurred are sustained. Therefore, Defendants' claim is unsubstantiated by any evidence.

Also, homeowners' associations generally owe a duty to exercise due care for the residents' safety in those areas under their control. (*Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 499.) Here, the CC&Rs provide the HOA with the exclusive right to repair and maintain common area installations and improvements and precludes individual owners from doing so. (Defs.' Ex. B, Art. IX, subd. (b) ["No structural alterations to the interior of any unit shall be made, and no plumbing or electrical work within any bearing or party walls shall be made by an individual owner without prior written consent of the Board of Governors."]) The fact that no prior fires had occurred or that complaints about the electrical wiring in C is not determinative because Defendants did not have to foresee "the precise injury" so long as "the possibility of this type of harm was foreseeable." (*Frances T.*, supra, 42 Cal.3d at p. 503.) Here, the risk of fire due to improperly maintained electrical wiring is foreseeable when the HOA retains control over maintenance and repair.

VI. CONCLUSION

In light of the foregoing, Defendants' motion for summary judgment is DENIED.

Moving party to give notice.

Dated
this 11th
day of August

2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.